IP INFORMATION DOCUMENT

LEXTRIA RESEARCH

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IP INFORMATION DOCUMENT - TRADEMARK

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STEPS FOLLOWED BY LEXTRIA RESEARCH TO FILE A TRADEMARK APPLICATION

STEP 1

Receiving the checklist from the team Lextria Research

STEP 2

Executing a Trademark Search and providing a Report (if needed) by the team Lextria Research.

STEP 3

Complying with the checklist and providing evidence of use of the mark if any by the Applicant

STEP 4

Executing the shared Power of Attorney and affidavit (if any) by the Applicant

STEP 5

Filing the mark by team Lextria and sharing the acknowledgement

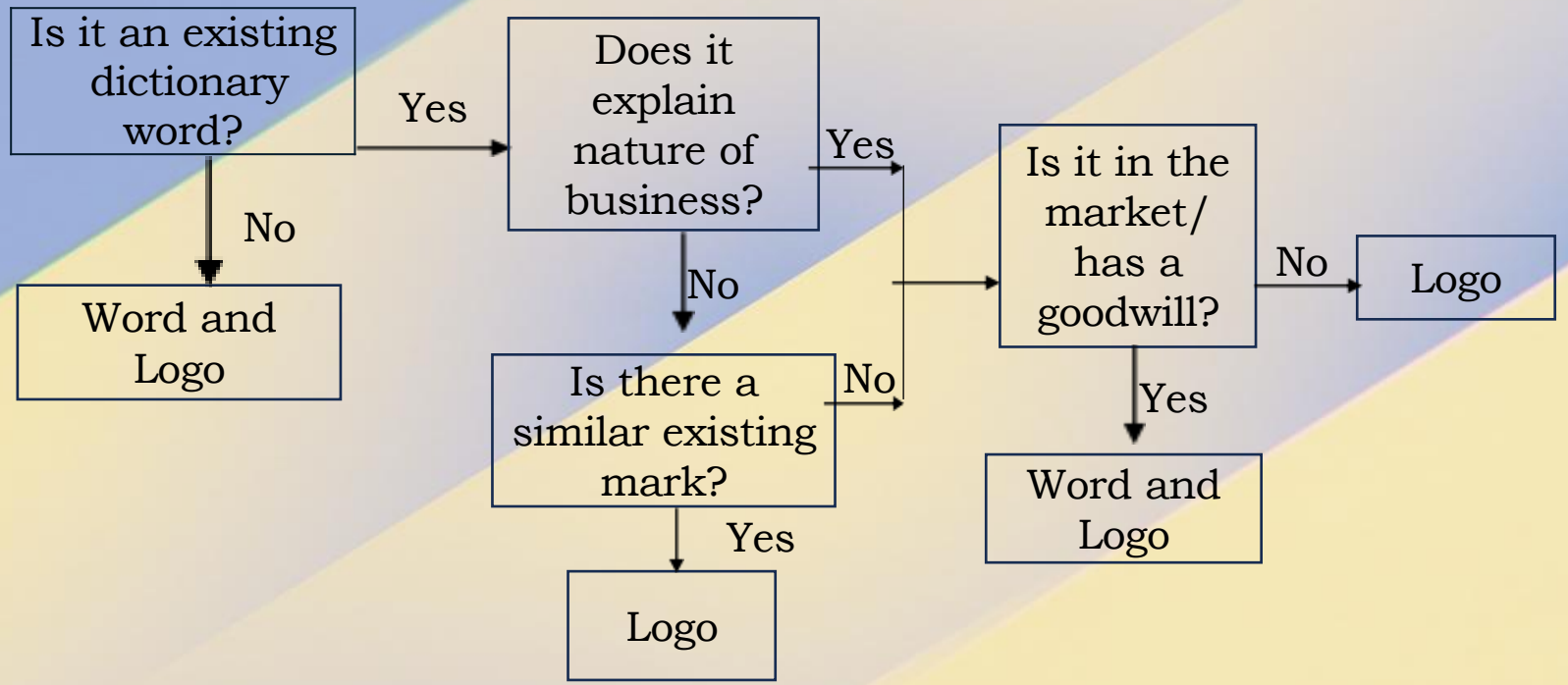
STEP 6

The mark is subjected for examination and team Lextria Research shall keep the Applicant posted.

*Details mentioned here are for illustration purpose only

CHECKLIST AND TESTS FOR SELECTING A TRADEMARK

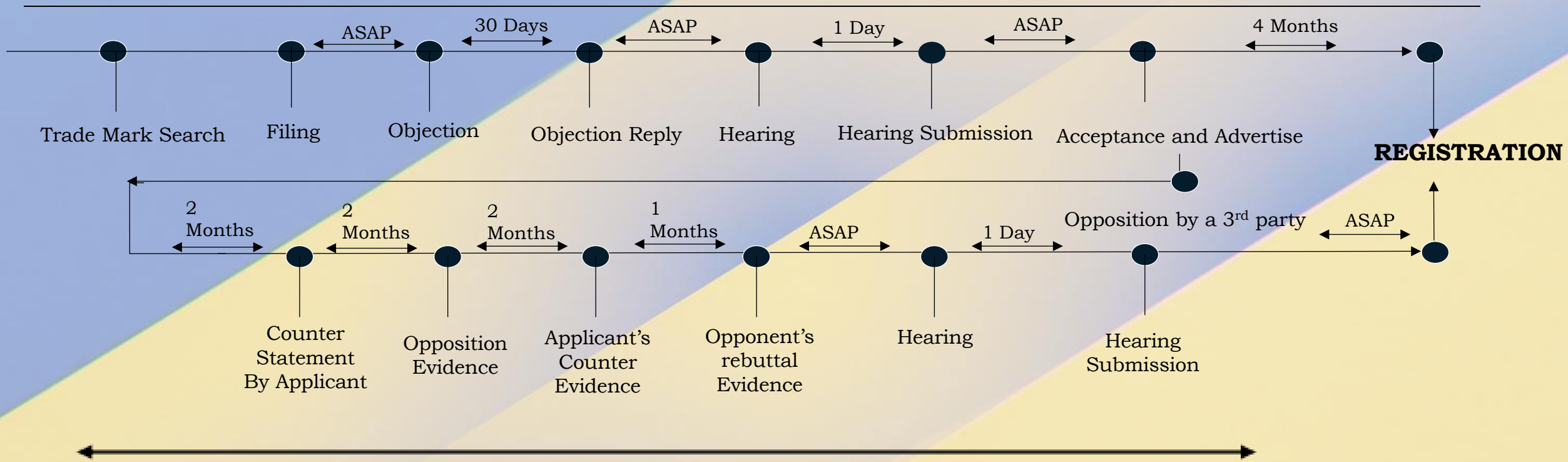
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TRADEMARK CYCLE - EXEMPLARY SCENARIO:

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1. In case of requirement of expedited examination, relevant fee shall be paid to speed up the process
2. 3rd party opposition can be filed by anyone
3. Trademark search includes search on the Trademark portal provided by the IPOTM

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SOME Keywords

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WORD MARK	DEVICE MARK
Word mark gives protection to arrangement of letters	Device mark or logo mark gives protection to the graphical representation of the mark.
Objection	**Opposition**
Objection is by the TM registry and the Applicant has to file a response within 1 month	Opposition is by the 3rd party; the Applicant has to follow the process or the Applicant based on recommendation can file opposition to similar advertised marks

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FAQs

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Question	Answer
Does every case have objection ?	Need not be, it may or may not come.
How much time it might take to issue a hearing ?	Timeline is not defined; the Applicant may expedite.
Which mark gets granted easily ?	It depends on the similar marks, in practice usually device marks are granted faster.
How to protect packaging ?	Trade dress registration is done to protect packaging

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Quotation for Trademark Filing

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Sl. No		Particulars (For Startup/MSME entities)	Prof Fees (₹)	Govt. Fee (₹)	Total (₹)
1.		Trademark Search accompanied by a search report and accompanying report. (Complementary No Fee)	10,000	-	**10,000/- (Discounted)**
2.	2a.	Filing of Trademark Application *(as MSME/Startup/Individual) (10% discount on prof fee of 7,500)*	6,750	4,500	**11,250/-**
		OR			
	2b.	Filing of Trademark via affidavit (Claiming prior usage of Trademark) *(as MSME/Startup/Individual) (10% discount on prof fee of 15,000)*	13,500	4,500	**18,000/-**
3.		Request for expedited processing of the application under Rule 34, along with the requisite statutory form. Note: this is an optional form. With expedition mark is usually disposed in 6 months, otherwise it might take over 3 years	-	20,000	**20,000/-**
4.		***(Only if applicable)*** Preparation and submission of a written response to the First Examination Report (FER) issued by the Trademark Office, along with requisite statutory forms.	7,500	-	**7,500/-**
5.		***(Only if applicable)*** Representation before the Trademark Office in response to queries raised during a scheduled hearing.	7,500	-	**7,500/-**
		(Only if applicable) Preparation and filing of written submissions, along with requisite statutory forms.	7,500	-	**7,500/-**

Government fees for large entities shall differ from those indicated above. Miscellaneous compliance forms shall attract the applicable Government fee plus a professional fee of ₹4,000/- per form. Payments are structured on a stage-wise basis; no payment shall be due for any stage deemed inapplicable. Stamp duty, courier, and other charges shall be communicated separately. All fees are exclusive of GST.